

R Maheswari vs N Pavan Kumar on 13 September, 2019

HONOURABLE SRI JUSTICE M. VENKATA RAMANA

C.R.P.No.2238 of 2019

ORDER:

(Admission Stage) This civil revision petition is directed against the order of the Court of learned Family Judge-cum-I Additional District Judge, Thirupathi, passed on the docket in F.C.O.P.No.110 of 2018.

2. The revision petitioner is the wife of the respondent. This revision petition is presented by her purportedly through her father as GPA holder on her behalf.

3. The above FCOP was presented by the respondent under Sections 6 and 8 of the Hindu Minority and Guardianship Act, 1956, as well as Section 9 of Guardian and Wards Act read with Section 7 of Family Court Courts Act, to declare that he is the lawful guardian of the ward, who is no other than the son of this couple, Master Jainarayan Sai now and to restrain the petitioner from interfering with peaceful custody of the ward in the hands of the respondent, at Thirupathi. The petitioner is described as a resident of Houston, Texas, U.S.A, where she is stated to be an Assistant professor in Department of Pathology, Baylor College of Medicine. Serious disputes arose in between this couple and a decree of divorce was granted by a Circuit Court of Wayne Country, Michigan, USA, on 21.01.2016. As of this date, the ward is stated to be in the custody of the petitioner.

4. Several contentions are advanced by the respondent as party-in- person alleging that the ward was forcibly taken away, by abduction from his custody, despite there were several directions from different Courts including this Court a reference of which he has made viz., W.P.No.30964 of 2018, I.A.No.1186 of 2018 in F.C.O.P.No.110 of 2018 orders dated 2 MVR,J 06.03.3018 and 18.03.2018, W.P.No.47795 of 2018 and Crl.M.P.No.1137 of 2019.

5. On behalf of the petitioner I.A.No.207 of 2019 under Rule 32 (2) Cr.P.C. read with Section 151 C.P.C, was filed before the Court of learned Family Judge, Thirupathi, through her father Sri R. Muniswamy Naidu to permit him to represent her in the above proceedings before the Family Court, Thirupathi.

6. The Family Court, Thirupathi passed the following order.

"Heard and perused the record. This petition is filed by the petitioner / respondent under Rule 32(2) of Cr.P.C., r/w Section 151 CPC., to permit the petitioner to represent the GPA, R. Muniswamy Naidu, who is the father of the petitioner/respondent, to appear and act on her behalf in the case proceedings. Respondent / petitioner reported no counter. It appears the petitioner is in USA and she executed a GPA dated 11.02.2019 in favour of her father to appear and represent

the present case and she also filed said GPA, which was executed at USA and got stamped by the District Registrar, Chittoor. Therefore, considering the circumstances explained by the GPA in his affidavit, the GPA executed by the petitioner / respondent and also the respondent / petitioner in the main FCOP reported no counter and also considering the facts, that the respondent is in USA and she is unable to attend the court, the petition is allowed as prayed for and also the petitioner shall obey all the conditions and orders in the FCOP No.110/2018 and also the interim order if any passed in the said FCOP and interlocutory orders in the said FCOP. I.A. is disposed of accordingly."

7. In the course of the above proceedings, when the matter was posted for attempting a settlement in terms of Section 9 of Family Courts Act, finding that the petitioner did not appear in person in spite of granting time and clear directions, learned Family Judge by the impugned 3 MVR,J order on 10.06.2019, in view of its earlier orders in I.A.No.207 of 2019, finding that the petitioner defaulted the condition imposed while permitting her father to represent her, revoked such permission while giving opportunity to her to file similar application to be represented through GPA, after complying with the mandatory procedure under Section 9 of the Family Courts Act, if necessary.

8. Against the above order, the present revision petition is filed.

9. Sri T. Pradhymna Kumar Reddy, learned counsel for the petitioner contends that there is no necessity for the Family Court, Thirupathi to have such an exercise under Section 9 of Family Courts Act nor there is any imminent necessity for the petitioner to appear before the above Court. While referring to breakdown of marriage of this couple and child being less than 5 years old, it is stated that the question before learned Family Judge, Thirupathi is in respect of custody of the child. He further expressed the inability of the petitioner to appear before the above Court pointing out that she is tied down by several orders and obstacles on account of several steps initiated by the respondent, in as much as a look out circular has been issued against her, while a Non Bailable Warrant is also pending unexecuted against her. Learned counsel further contended that in as much as question relating to jurisdiction of the family Court, Thirupathi, is seriously in issue, insistence of the Court below for personal appearance of the petitioner is uncalled for. It is also contended that in the event her father represents her in all the proceedings before the Family Court, Thirupathi, the respondent would not suffer any prejudice nor anyone.

10. Thus mainly contending, it is requested to allow this revision petition.

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11. The respondent, as party-in-person, supported the order under revision, while very elaborately submitting several events that occurred between him and the petitioner as are relating to their matrimony or the manner by which the petitioner allegedly grabbed the custody of the child seriously violating the orders of this Court in W.P.No.30964 of 2018 dated 14.09.2018, which was instituted by the petitioner herself. He further referred to filing a Writ of Habeas Corpus in W.P.No.47795 of 2018 on the file of this Court in which a detailed order was passed by a Division

Bench of this Court on 12.04.2019. He also pointed out that as per the order in Cr.M.P.1137 of 2019 dated 05.07.2019, the very same Court where the present proceedings are pending between him and the petitioner, granted anticipatory bail. Stating that the father of the petitioner cannot represent the petitioner any more since she deliberately violated the orders of the Family Court Thirupathi, referred to supra, he requested not to permit her father any more to represent her and to dismiss the C.R.P. He also filed a counter in this revision petition purportedly in response to the notice served on him.

12. Now, the point for determination is - whether the order of learned Family Judge, Thirupathi, dated 10.06.2019 revoking permission granted to the father of the petitioner to represent her in F.C.O.P.No.110 of 2018, is just and proper?

13. The order in I.A.No.207 of 2019, extracted supra, clearly indicate that the petitioner shall obey all the conditions and orders in the above case as well as interlocutory orders passed by the Court of learned Family Judge, Thirupathi in F.C.O.P.No.110 of 2018.

14. A careful perusal of the order under revision makes out that on 03.04.2019 an order was passed by the above Court directing that there 5 MVR,J shall be a mediation between this couple and hence wanted them to appear before the above Court on 03.05.2019, while requiring the father of the petitioner to produce her, granting a month's time. However, on 03.05.2019 there was default on the part of the petitioner since she did not appear. Thereupon, a further direction was given on 03.05.2019 by the above Court giving more than a month's time posting the matter to 10.06.2019 for appearance of the petitioner. On 10.06.2019 observing that the petitioner did not appear in the above Court, the order under revision was passed.

15. Thus, after the order was passed in I.A.No.207 of 2019 on 23.02.2019 on two occasions thereafter, the above case was posted for appearance of the petitioner for the purpose of mediation / conciliation in terms of Section 9 of Family Courts Act.

16. Such course for the Family Court, Thirupathi, is not necessary according to the contention of the petitioner. Nonetheless, the Court below desired to have such proceedings obviously with good intention of attempting a settlement or conciliation. Even otherwise, under Section 89 C.P.C., it is mandatory for a Court, to have such proceedings to make an attempt to bring the parties to settlement.

17. When this Court specifically enquired in the course of this hearing the learned counsel for the petitioner if there is possibility for the petitioner to appear before the Family Court at Thirupathi for the above purpose, setting out the circumstances the petitioner is now found, that a look out circular issued by CBI in connection with C.C.No.302 of 2019 on the file of the Court of V AFCJM, Thirupathi, and threat looming large on her at the instance of the respondent as well as pendency of NBWs, explained her inability to attend or appear before the above Court.

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18. The Look out circular referred to above is admitted by the respondent while he denied that a Non Bailable Warrant is pending against her, by referring to grant of anticipatory bail, referred to supra, in her favour.

19. The petitioner now cannot contend that there is no necessity for her to appear before the above Court in as much as she had the benefit of an order in her favour in I.A.No.207 of 2019, whereby she agreed to abide by all the conditions imposed by the above Court. When there were directions by the above Court for her appearance on 03.05.2019 as well as on 10.06.2019 deliberately and intentionally she flouted without complying them, the learned Family Judge is justified in recalling the earlier order revoking permission granted to her father to represent her as GPA, as is referred to in the order in I.A.No.207 of 2019. It is obvious and manifest that the petitioner is not intending to appear before the Court.

20. In the course of hearing, it is also informed by the learned counsel for the petitioner as well as the respondent that the proceedings are continuing in the above Court and the father of the petitioner is still representing her though his GPA has been revoked. The situation now appears to be that the petitioner has been set ex parte in the above proceedings. It is also informed by the respondent in person that the above matter stood listed for recording his evidence this day (ex parte proceedings). Though, contention on behalf of the petitioner that the respondent would not suffer prejudice if the petitioner represented by her father in the above proceedings though appears to be true, in as much as granting permission in favour of a party represented by GPA is between the Court and the party concerned, in particular facts and circumstances 7 MVR,J of the Court, when the directions of the Court were not followed intentionally the question of prejudice, cannot have any bearing.

21. Learned Family Judge is thus right in revoking permission granted to the father of the petitioner to represent her in the above circumstances.

22. Though number of contentions are advanced on behalf of the respondent as party in person touching upon merits of the case, having regard to the scope of this revision petition, since confined to revocation of permission granted in terms of Rule 32 Cr.P.C. to the father of the petitioner by the order now impugned, they need not and cannot be considered.

23. In the above circumstances, finding no improper exercise of jurisdiction nor there being any illegality in the order passed by the learned Family Judge, Thirupathi, the same has to be confirmed.

24. In the result, the Civil Revision Petition is dismissed and in the circumstances without costs. As a sequel, pending miscellaneous petitions, if any, shall stand closed.

_____ M. VENKATA RAMANA, J.

13th September, 2019 Js.

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